



Study Notes

Maternity Benefit Act 1961

Introduction

- **The Maternity Benefit Act** regulate the employment of women in certain establishments for certain periods before and after child-birth and to provide for maternity benefit and certain other benefits.
- It extends to whole of India.
- It applies to
 - ✓ **every establishment being a factory, mine or plantation** including any such establishment belonging to Government and to every establishment wherein persons are employed for the **exhibition of equestrian, acrobatic and other performances**
 - ✓ every shop or establishment within the meaning of any law for the time being in force in **relation to shops and establishments in a State**, in which **ten or more persons are employed, or were employed**, on any day of the preceding twelve months
- State Government can declare that the provisions of this Act shall apply also to any other establishment or class of establishments, industrial, commercial, agricultural or otherwise, **after giving a minimum 2 month's notice, with the prior approval of Central Government.**

Important Definitions (Section 3)

- **Appropriate Government means,—**
 - ✓ In relation to an establishment being a mine, or an establishment wherein persons are employed for the exhibition of equestrian, acrobatic and other performances, the **Central Government**;
 - ✓ in relation to any other establishment, **the State Government**;
- **Child** includes a still-born child.
- **Commissioning mother** means a biological mother who uses her egg to create an embryo implanted in any other woman;
- **Employer** means

Establishment under the control of Government	Person appointed for supervision and control of employees; or Head of Department
Establishment under Local Authority	Person appointed for supervision and control of employees; or Chief Executive Officer of Local Authority
Other case	Person who has ultimate control over the affairs of establishment; Manager; Managing director, Managing agent etc

- **Establishment** means a factory, mine, plantation, establishment wherein persons are employed for the exhibition of equestrian, acrobatic and other performances, shop or establishment;
- **Miscarriage** means expulsion of contents of pregnant uterus at any period prior to or during the twenty-sixth week of pregnancy but does not include any miscarriage, the causing of which is punishable under the Indian Penal Code;

- **Wages** means all remuneration paid or payable in cash to a woman, if the terms of the contract of employment, express or implied, were fulfilled

Includes	Does not include
cash allowances (including dearness allowance and house rent allowance) as a woman is for the time being entitled to	any contribution paid or payable by the employer to any pension fund or provident fund or for the benefit of the woman under any law for the time being in force
incentive bonus	any bonus other than incentive bonus
money value of the concessional supply of food grains and other articles	over-time earnings and any deduction or payment made on account of fines
	any gratuity payable on the termination of service

- **Woman** means a woman employed, whether directly or through any agency, for wages in any establishment

Provisions related to maternity period or maternity benefit

Section	Detail
Section 4 - Employment of, or work by, women prohibited during certain periods	Employer shall not employ and woman shall not work in any establishment during the 6 weeks immediately following the day of her delivery, miscarriage or medical termination of pregnancy. A woman shall not be asked to do any work which is of an arduous nature or which involves long hours of standing, or which in any way is likely to interfere with her pregnancy or the normal development of the foetus, or is likely to cause her miscarriage or otherwise to adversely affect her health, during - the period of one month immediately preceding the period of six weeks, before the date of her expected delivery; - (b) any period during the said period of six weeks for which the pregnant woman does not avail of leave of absence
Section 5 – Right to payment of maternity benefit	• Every woman shall be entitled to, and her employer shall be liable for, the payment of maternity benefit at the rate of the average daily wage for the period of her actual absence, that is to say, the period immediately preceding the day of her delivery, the actual day of her delivery and any period immediately following that day. • A woman is entitled to maternity benefit if she has actually worked in an establishment for a period not less than 80 days in 12 months immediately preceding the date of her expected delivery. • The maximum period of maternity benefit shall be 26 weeks of which not more than 8 weeks shall precede the date of her expected delivery. If woman has 2 or more surviving children, maternity benefit will be for 12 weeks, of which not more than 6 weeks shall precede the date of expected delivery. If a woman dies, maternity benefit shall be payable only for the days up to and including the day of her death • Legal adoption of a child below the age of 3 months or a commissioning mother shall be e entitled to maternity benefit for a period of twelve weeks from the date the child is handed over to the adopting mother or the commissioning mother
Section 6 - Notice of claim for maternity benefit and payment thereof	Woman may give notice stating that her maternity benefit and any other amount to which she may be entitled under this Act may be paid to her or to such person as she may nominate in the notice and that she will not work in any establishment during the period for which she receives maternity benefit A pregnant woman shall state the date from which she will be absent from work.

Section 7 - Payment of maternity benefit in case of death of a woman	If a woman entitled to maternity benefit or any other amount, dies before receiving such maternity benefit or amount, the employer shall pay such benefit or amount to the person nominated by the woman in the notice given under section 6 and in case there is no such nominee, to her legal representative
Section 8 - Payment of medical bonus	Every woman entitled to maternity benefit under this Act shall also be entitled to receive from her employer a medical bonus of one thousand rupees, if no pre-natal confinement and post-natal care is provided for by the employer free of charge. The Central Government may before every three years, by notification in the Official Gazette, increase the amount of medical bonus subject to the maximum of twenty thousand rupees
Section 9 - Leave for miscarriage	Woman is entitled to leave with wages for a period of six weeks immediately following the day of her miscarriage or, her medical termination of pregnancy
Section 9A - Leave with wages for tubectomy operation	for a period of two weeks immediately following the day of her tubectomy operation
Section 10 - Leave for illness arising out of pregnancy, delivery, premature birth of child, miscarriage, Medical termination of pregnancy or tubectomy operation	A woman is, in addition to the period of absence allowed to her under section 6, entitled to leave with wages at the rate of maternity benefit for a maximum period of one month
Section 11 - Nursing Breaks	Every woman delivered of a child who returns to duty after such delivery shall, in addition to the interval for rest allowed to her, be allowed in the course of her daily work two breaks of the prescribed duration for nursing the child until the child attains the age of fifteen months
Section 11A - Creche Facility	Every establishment having fifty or more employees shall have the facility of crèche. Employer shall allow four visits a day to the creche by the woman, which shall also include the interval for rest allowed to her
Section 12 - Dismissal during absence of pregnancy	It shall be unlawful for the employer to discharge or dismiss a woman during or on account of such absence or to give notice of discharge or dismissal on such a day that the notice will expire during such absence, or to vary to her disadvantage any of the conditions of her service Any woman deprived of maternity benefit or medical bonus, or both, or discharged or dismissed during or on account of her absence from work in accordance with the provisions of this Act, may, within sixty days, appeal to such authority as may be prescribed, and the decision of that authority shall be final
Section 13 - No deduction of wages in certain cases	No deduction from the normal and usual daily wages of a woman entitled to maternity benefit under the provisions of this Act shall be made by reason only of – nature of work assigned to her, prohibited under Section 4 or breaks for nursing the child allowed to her.

Inspector (Section 14-17)

- The appropriate government may appoint inspectors and define their jurisdiction limits.
- The Inspector has the power to enter at reasonable times any premises or place for examining registers, records, notices etc; to examine any person; to require the employer to give information and to take copies of registers/records/notices.
- Any woman claiming maternity benefit or any other amount due or that she has been discharged/ dismissed during her absence may **complaint to the Inspector**
- Inspector may **on his own motion or on receipt of complaint inquire into the matter** and give directions accordingly. Appeal against this order may lie to the prescribed authority **within 30 days**.
- The decision of prescribed authority will be final.

- Any amount payable under this section shall be recoverable by the Collector on a certificate issued for that amount by the Inspector as an arrear of land revenue

Miscellaneous (Ch III)

- Section 20 deals with **Duty of employers to prepare and maintain registers**
- Penalties**

Offence	Penalty
Employer contravenes the Act – fails to pay maternity benefit; dismisses a woman during her absence due to maternity	imprisonment 3 months to 1 year; and fine Rs 2000 to 5000
Obstructing Inspector - not producing demanded document or prevents any person from appearing before inspector	Fine up to Rs 5000 or imprisonment which can extend to 1 year or with both
Any other contravention	

- Cognizance of Offences (Section 23)** — Any aggrieved woman, an office-bearer of a trade union registered under the Trade Unions Act, 1926 of which such woman is a member or a voluntary organisation registered under the Societies Registration Act, 1860 or an Inspector,
 - ✓ may file a complaint regarding the commission of an offence under this Act in any court of competent jurisdiction and
 - ✓ no such complaint shall be filed after the expiry of one year from the date on which the offence is alleged to have been committed.
 - ✓ No court inferior to that of a Metropolitan Magistrate or a Magistrate of the first class shall try any offence under this Act
- Appropriate Government has the power to make rules
- The Central Government has the power to give directions to the State Government for carrying into execution the provisions of this code
- The appropriate Government has the power to exempt any establishment or class of establishment from operation of all or any of the provisions of this Act or rule made thereunder.
- The Mines Maternity Benefit Act 1941 and the Union territory of Delhi, the Bombay Maternity Benefit Act, 1929 are repealed.